

25STCV7665 25STCV7665

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

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Case Number: 25STCV7665 Hearing Date: August 10, 2026 Dept: 512

HEARING DATE: Mon., August 10, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Gutierrez

v. United Education Institute

CASE NUMBER: 25STCV07665

NOTICE: OK

PROCEEDINGS: MOTION

FOR RELIEF FROM JUDGMENT

MOVING PARTY: Plaintiff

Eva Cano Gutierrez

RESP. PARTY: Defendant United Education Institute

MOTION FOR RELIEF FROM JUDGMENT

TENTATIVE RULING:

Plaintiff Eva Cano Gutierrez's Motion
for Relief from Judgment is DENIED.

Moving party is ordered to give
notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 28, 2026 ☐ Late ☐ None

REPLY: None
filed as of August 6, 2026 ☐
Late ☒ None

ANALYSIS:

I. Background

On March 18, 2025, Plaintiff Eva Cano Gutierrez ("Plaintiff"), proceeding pro se, filed a Complaint against Defendant United Education Institute ("Defendant").

On November 26, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendant.

On March 3, 2026, the Court sustained Defendant's demurrer to the FAC without leave to amend and confirmed this ruling "terminates the case." (3/3/26 Order.)

On April 14, 2026, Judgment of dismissal, with prejudice, was entered in favor of Defendant and against Plaintiff. (4/14/26 Judgment.)

On May 4, 2026, Plaintiff filed a first Motion for Relief from Judgment that was taken off calendar by the moving party.

On June 3, 2026, Plaintiff filed the instant second Motion for Relief from Judgment (the "Motion") and proof of service demonstrating the Motion was served on Defendant on May 31, 2026.

On July 28, 2026, Defendant filed an Opposition to the Motion.

No Reply was filed.

II.

Legal Standard & Discussion

Plaintiff moves for relief from judgment entered in the instant action and requests sanctions against Defendant and defense counsel for various reasons. (Motion, pp. 1-3.) Plaintiff also requests the Court remove the federal student loan from her record and award statutory damages and special damage. (Motion, p. 2.)

In Opposition, Defendant requests the Motion be denied on "procedural, substantive, and fundamental fairness grounds." (Opp., p. 1.) Defendant states the Motion fails to comply with Code of Civil Procedure section 473, subdivision (b); disregards fundamental Motion requirements such as an adequate supporting memorandum; and fails to address the underlying reason for the dismissal entered in this matter. (See Opp.)

California Rules of Court, rule 3.1112 requires that motions consist of a notice of hearing, the motion itself, and a memorandum in support (Cal. Rules of Court, rules 3.1112), and California Rules of Court, rule 3.1113 requires that a supporting memorandum contain "a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rules 3.1113.)

Here, the Motion does not include a supporting memorandum or a concise statement of the law or clear discussion of the authority supporting the Motion's position. To the extent the Motion references the Code of Civil Procedure broadly, "Revenue and Taxation Section Code 23304.1, 23301... 197919," and Code of Civil Procedure section 418.10 and 418.20, some of these

provisions do not exist and others do not provide grounds for the relief requested. The Motion does not cite any case law or statutory authority that authorizes this Court to grant Plaintiff relief from the judgment entered in this matter.

The Court may not grant relief from a judgment absent sufficient supporting legal authority.

To the extent the Motion requests the Court impose sanctions against Defendant; remove Plaintiff's federal student loan from her record; and award damages, the Court finds these requests are legally unsupported and/or improperly raised in the instant motion for relief from judgment.

The Court acknowledges that Plaintiff is self-represented. Self-represented litigants are still "held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.)

For all these reasons, the Motion is DENIED.

III.

Conclusion
& Order

Accordingly, Plaintiff Eva Cano Gutierrez's Motion for Relief from Judgment is DENIED.

Moving party is ordered to give notice.